

26STCP01440 26STCP01440

County: los-angeles

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Case Number: 26STCP01440 Hearing Date: August 31, 2026 Dept: 26

TENTATIVE RULING:

Petitioner Capital One, N.A.,
successor by merger to Discover Bank's Petition to Confirm Arbitration Award is granted. Judgment is to be entered in the amount of \$11,379.81, plus interest at the rate of 10% per annum on any unpaid balance of the \$11,379.81 unpaid principal from May 13, 2024 to the date of entry of judgment, and court costs of \$225.00.

Petitioner is to file and serve a
proposed judgment in accordance with this ruling, including the calculation of the interest owed, within 20 days.

Analysis:

On April 10, 2026, Petitioner Discover Bank ("Petitioner")
filed the instant Petition to Confirm Arbitration Award against Respondent Cheynne Chong ("Respondent"). Petitioner's Application to Amend Name was granted on April 24, 2026, changing its name to "Capital One, N.A., successor by merger to Discover Bank." Petitioner filed a Proof of Substituted Service on May 18, 2026. Respondent filed a Petition to Vacate on August 18, 2026.

Legal Standard

"Any party to an arbitration in which an award has been made
may petition the court to confirm, correct or vacate the award. The petition shall name as respondent all parties to the arbitration and may name as respondents any other persons bound by the arbitration award." (Code Civ.

Proc., § 1285.) “If a petition or response under this chapter is duly served and filed, the court shall confirm the award as made, whether rendered in this state or another state, unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding.” (Code Civ. Proc., § 1286.)

A response to a petition to confirm an arbitration award, which seeks to vacate or correct the award, must be served and filed no later than 100 days after the date of the service of a signed copy of the award on the respondent. (Code Civ. Proc., § 1288.2.)

Discussion

Service of the Petition and Notice of Hearing

Code of Civil

Procedure, section 1290.4 requires that the petition and notice of hearing be served on Respondent “in the manner provided in the arbitration agreement for the service of such petition and notice” or “[i]f the arbitration agreement does not provide the manner in which such service shall be made . . . [s]ervice within this State shall be made in the manner provided by law for the service of summons in an action.” (Code Civ. Proc., § 1290.4, subds. (a), (b).)

The arbitration agreement is attached to the Petition, but does not provide for the manner of service for a petition to confirm an arbitration award. (Pet., Attachment 4b, p. 3.) Therefore, the Court finds that the Petition and Notice of Hearing must be served in the same manner as a summons. Petitioner filed a Proof of Substituted Service of the Petition and Notice of Hearing demonstrating that the papers were served on Respondent effective May 15, 2026. (Proof of Substituted Service, filed 05/18/26, ¶¶3-5.) This satisfies the service requirement of Code of Civil Procedure section 1290.4.

Service of the Arbitration Award (CCP § 1283.6)

Code of Civil

Procedure section 1283.6 requires that “[t]he neutral arbitrator shall serve a signed copy of the award on each party to the arbitration personally or by

registered or certified mail or as provided in the agreement.” (Code Civ. Proc., § 1283.6.) This requirement may be satisfied by service by the arbitrator, or upon proper service of the award with the petition. (See *Murray v. Civil Service Employees Ins. Co.* (1967) 254 Cal.App.2d 796, 799-800.) The arbitration award was served with the instant Petition. (Pet., Attachment 8(c).)

Confirmation of the Arbitration Award

An arbitration award is not directly enforceable until it is confirmed by a court and judgment is entered. (Code Civ. Proc. § 1287.6; *Jones v. Kvistad* (1971) 19 Cal.App.3d 836, 840.) The court must confirm the award as made, unless it corrects or vacates the award, or dismisses the proceeding. (CCP § 1286; *Valsan Partners Limited Partnership v. Calcor Space Facility, Inc.* (1994) 25 Cal.App.4th 809, 818.) Code of Civil Procedure, section 1285.4 states a petition under this chapter shall:

a)
Set forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement.

b)
Set forth the names of the arbitrators.

c)
Set forth or have attached a copy of the award and the written opinion of the arbitrators, if any.

(Code Civ. Proc., § 1285.4.) The Petition complies with these requirements. It sets forth the nature of the arbitration agreement, the name of the arbitrator, and attaches a copy of the arbitration award. (Pet., ¶¶4-6 and Attachment 8(c).) The arbitrator awarded Petitioner \$11,379.81, plus interest at the rate of 10% a year on any unpaid balance of the \$11,379.81 from 30 days from the date of the Arbitration Award. (Id. at Attachment 8(c), p. 2.)

Respondent filed a Petition to Vacate, however it does not include any proof of service showing it was served on Petitioner, nor was it

set for hearing on any day. Further, the Petition to Vacate attaches no facts supporting the request to vacate, as required. (Petition to Vacate, ¶10c.) Petitioner filed only the three-page form and nothing more. Finally, any Petition to Vacate is untimely, because it would have been due within 10 days after service of the Petition to confirm. (See Code Civ. Proc., § 1290.6; Valencia v. Mendoza, (2024)103 Cal. App. 5th 427, 445, (2024), review denied (Oct. 16, 2024) (ten-day deadline applies to standalone petition to vacate).

Therefore, the arbitration award is confirmed in favor of Petitioner in the amount set forth above. The Petition to Vacate filed August 18, 2026 is denied.

Costs and Interest

To the extent Petitioner requests costs of \$225.00, those are permitted on a petition to confirm arbitration award. (Code Civ. Proc., § 1293.2; MBNA America Bank, N.A. v. Gorman (2006) 147 Cal.App.4th.Supp. 1, 7.) Petitioner is awarded court costs of \$225.00. (Pet., ¶10e.) Also, “a successful party to arbitration is entitled to post-award, pre-judgment interest under Civil Code section 3287, subdivision (a). (Pierotti v. Torian (2000) 81 Cal.App.4th 17, 27.) The Petition seeks interest of ten percent per annum from May 13, 2024, which was already included in the terms of the award as set forth above. (Pet., ¶10d.)

Conclusion

Petitioner Capital One, N.A., successor by merger to Discover Bank’s Petition to Confirm Arbitration Award is granted. Judgment is to be entered in the amount of \$11,379.81, plus interest at the rate of 10% per annum on any unpaid balance of the \$11,379.81 unpaid principal from May 13, 2024 to the date of entry of judgment, and court costs of \$225.00.

Petitioner is to file and serve a proposed judgment in accordance with this ruling, including the calculation of the interest owed, within 20 days.

Respondent Cheyenne Chong's
Petition to Vacate Arbitration Award is denied.

Moving party to give notice.